

24STCV34740 24STCV34740

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Case Number: 24STCV34740 Hearing Date: August 5, 2026 Dept: 729

Superior

Court of California

County of Los Angeles

DEPARTMENT

729

TENTATIVE RULING

KAREN

CAMARGO,

vs.

FORD

MOTOR COMPANY, et al.

Case No.:

24STCV34740

Hearing Date: August 5, 2026

Defendant

Ford Motor Company's demurrer to Plaintiff Karen Camargo's Second Amended

Complaint is sustained as to the 6th cause of action without leave to amend.

Defendant Ford Motor Company ("Ford") ("Moving Defendant")
demurs to Plaintiff Karen Camargo's ("Camargo") ("Plaintiff") second amended complaint
("SAC") as to the 6th cause of action.
(Notice of Demurrer, pg. 2.)

Background

Plaintiff filed her initial Complaint on
December 31, 2024, against Moving Defendant and Non-moving Defendant Woodland
Ford ("Woodland") (collectively, "Defendants").
(See Complaint.)

On July 16, 2025, Plaintiff filed her first
amended complaint ("FAC") alleging six causes action against Defendants: (1)
violation of Civil Code §1793.2(d) [against Ford]; (2) violation of
Civil Code §1793.2(b) [against Ford]; (3) violation of Civil Code
§1793.2(a)(3) [against Ford]; (4) breach of implied warranty of
merchantability (Civil Code §§1791.1, 1794, 1795.5) [against Ford]; (5)
negligent repair [against Woodland]; and (6) fraudulent inducement-
concealment [against Ford].

On January 12, 2026, this Court ruled on
Defendants' demurrer to the FAC, overruling the demurrer to the 1st, 2nd, 3rd,
4th, and 5th causes of action and sustaining with 20 days leave to amend as to
the 6th cause of action. (See
1/12/26 Minute Order.)

On February 2, 2026, Plaintiff filed the
operative SAC, alleging the same six causes of action.[1]

Moving Defendant filed the instant demurrer on April
8, 2026. Plaintiff filed her opposition
on July 23, 2026. Moving Defendant filed
its reply on July 29, 2026.

Meet and Confer

Before filing a demurrer, the moving party must meet and
confer in person, by telephone, or by video conference with the party
who filed the pleading to attempt to reach an agreement that would resolve the

objections to the pleading and obviate the need for filing the demurrer. (C.C.P. §430.41, emphasis added.)

Moving Defendant's counsel declares that on April 7, 2026, he met and conferred with Plaintiff's counsel via video conference, and the parties were unable to resolve the issues presented by this demurrer. (See Decl. of Liu ¶3.) Moving Defendant's counsel's declaration is sufficient under C.C.P. §430.41. Accordingly, the Court will consider Moving Defendant's demurrer.

Summary of Demurrer

Moving Defendant demurs to the 6th cause of action on the basis it fails to state a cause of action.
(Notice Demurrer, pg. 2; C.C.P. §430.10(e).)

Legal Standard

"[A] demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See Donabedian v. Mercury Insurance Co. (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents].) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (Aubry v. Tri-City Hospital District (1992) 2 Cal.4th 962, 967.)

Fraudulent Concealment (6th COA)

The required elements for fraudulent concealment are: "(1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact to the plaintiff; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would not have acted as he or she did if he or she had known of the concealed or suppressed fact; and (5) plaintiff sustained damage as a result of the concealment or suppression of the fact." (See Bank of America Corp. v. Superior

Court (2011) 198 Cal.App.4th 862, 870; Civ. Code §1710(3); CACI 1901.) The rule of specificity of pleading is only intended for affirmative fraud cases not fraud by concealment. (See *Alfaro v. Community Housing Improvement Systems & Planning Association, Inc.* (2009) 171 Cal.App.4th 1356, 1384.)

Plaintiff alleges that she experienced defects in the Subject Vehicle including, but not limited to, check engine lights and navigation screen glitches. (SAC ¶16.)

Plaintiff alleges that prior to purchasing the Subject Vehicle, Moving Defendant was well aware and knew that the 6-speed Transmission installed on the Vehicle was defective but failed to disclose this fact to Plaintiff prior to and at the time of sale and thereafter. (SAC ¶63.)

Plaintiff alleges Moving Defendant knew that the 6-speed Transmission had one or more defects that can result in (1) hesitation or delayed acceleration, (2) harsh or hard shifting, (3) jerking, (4) shuddering, or juddering; (5) surging and/or inability to control the vehicle's speed, acceleration, or deceleration, (6) symptoms requiring reprogramming of the transmission control module ("TCM") and/or powertrain control module ("PCM"), (7) failure or replacement of the transmission ("Transmission Defect"). (SAC ¶64.)

Plaintiff alleges that these conditions present a safety hazard and are unreasonably dangerous to consumers because they can suddenly and unexpectedly cause the driver to be unable to control the speed and acceleration/deceleration of the vehicle. (SAC ¶64.) Plaintiff alleges such unexpected inability to control the vehicle's speed and acceleration/deceleration thereby, exposes Plaintiff and passengers (along with other drivers who share the road or garage with Plaintiff) to a serious risk of accident and injury. (SAC ¶64.)

Plaintiff alleges on information and belief that Moving Defendant acquired its knowledge of the Transmission Defect prior to Plaintiff acquiring the Vehicle, through sources not available to consumers such as Plaintiff, including but not limited to pre-production and post-production testing data; early consumer complaints about the Transmission Defect made directly to Moving Defendant and its network of dealers; aggregate warranty data compiled from Moving Defendant's network of dealers; testing conducted by Moving Defendant in response to these complaints; as well as warranty repair and part replacements data received by Moving Defendant from Moving Defendant's network of dealers, amongst other sources of internal information.

(SAC ¶65.)

Plaintiff alleges that she is a reasonable consumer who interacted with Moving Defendant's sales representatives, considered Moving Defendant's advertisement, and/or other marketing materials concerning Ford Vehicles prior to purchasing Subject Vehicle. (SAC ¶66.) Plaintiff alleges that had Moving Defendant and its dealership(s) revealed the Transmission Defect in these disclosures, Plaintiff would have been aware of it and would not have purchased Subject Vehicle. (SAC ¶66.)

Plaintiff alleges on information and belief that while Moving Defendant knew about the Transmission Defect, and its safety risks since prior to Plaintiff's purchase of the Subject Vehicle, Moving Defendant and its directors, officers, employees, affiliates, and/or agents nevertheless concealed and failed to disclose the defective nature of the Vehicle, its 6-speed Transmission to Plaintiff prior to and at the time of sale. (SAC ¶67.) Plaintiff alleges had Plaintiff known that the Vehicle suffered from the Transmission Defect, Plaintiff would not have purchased the Vehicle. (SAC ¶67.) Plaintiff alleges Moving Defendant's concealment of this safety defect was material and Plaintiff relied on Moving Defendant's advertising materials which did not disclose the defect. (SAC ¶67.)

Plaintiff alleges that prior to the sale of the Vehicle to Plaintiff, Moving Defendant knew that the Vehicle and its 6-speed Transmission suffered from an inherent defect, was defective, would fail prematurely, and was not suitable for its intended use. (SAC ¶68.)

Plaintiff alleges Moving Defendant was under a duty to Plaintiff to disclose the defective nature of the Vehicle, its Transmission, its safety consequences and/or the associated repair costs because: (a) Plaintiff is informed, believes and thereon alleges that Moving Defendant acquired its knowledge of the Transmission Defect and its potential consequences prior to Plaintiff acquiring the subject vehicle, through sources not available to consumers such as Plaintiff, including but not limited to pre-production testing data, early consumer complaints about the Transmission Defect made directly to Moving Defendant and its network of dealers, aggregate warranty data compiled from Ford's network of dealers, testing conducted by Moving Defendant in response to these complaints, as well as warranty repair and part replacements data received by Moving Defendant from its network of dealers,

amongst other sources of internal information; (b) Moving Defendant was in a superior position from various internal sources to know (or should have known) the true state of facts about the material defects contained in vehicles equipped with the 6-speed Transmission; and (c) Plaintiff could not reasonably have been expected to learn of or discover the Vehicle's Transmission Defect and its potential consequences until well after Plaintiff purchased the Vehicle. (SAC ¶69.)

Plaintiff alleges that in failing to disclose the defects in the Vehicle's 6-speed Transmission, Moving Defendant has knowingly and intentionally concealed material facts and breached its duty not to do so. (SAC ¶70.)

Plaintiff alleges that as a result of Moving Defendant's misconduct, Plaintiff has suffered and will continue to suffer actual damages. (SAC ¶73.) Plaintiff alleges she was harmed by purchasing a vehicle that she would not have purchased had she known the true facts about the Transmission Defect. (SAC ¶73.) Plaintiff alleges that she unknowingly exposed herself to the risk of liability, accident and injury as a result of Moving Defendant's fraudulent concealment of the Transmission Defect. (SAC ¶73.)

Plaintiff fails to allege facts demonstrating that Moving Defendant had a duty to disclose to Plaintiff. (*LiMandri v. Judkins* (1997) 52 Cal.App.4th 326, 336 ["There are 'four circumstances in which nondisclosure or concealment may constitute actionable fraud: (1) when the defendant is in a fiduciary relationship with the Plaintiff; (2) when the defendant had exclusive knowledge of material facts not known to the Plaintiff; (3) when the defendant actively conceals a material fact from the Plaintiff; and (4) when the defendant makes partial representations but also suppresses some material facts.'"]) Plaintiff fails to allege a transactional relationship with Moving Defendant that would invoke a duty on the part of Moving Defendant to disclose to Plaintiff. (*Id.* at pgs. 336-337.)

The SAC does not allege that Plaintiff purchased the Subject Vehicle directly from Moving Defendant. Therefore, any alleged concealment by Defendant did not arise in a direct transaction between Plaintiff and Moving Defendant. Nor has Plaintiff pled any specific facts showing that the dealer from which they purchased their vehicle is Plaintiff's agent or establishing any other circumstance in which a duty to disclose could arise.

Accordingly, Moving Defendant's demurrer to Plaintiff's 6th cause of action is sustained without leave to amend.

Conclusion

Moving Defendant's demurrer to the 6th cause of action is sustained without leave to amend.

Moving Party to give notice.

Dated:

August _____, 2026

Hon. Daniel M. Crowley

Judge of the Superior Court

[1] The Court notes Moving Defendant's demurrer is only to the 6th cause of action; Moving Defendant does not demur to the 1st, 2nd, 3rd, 4th, or 5th causes of action.